

24STCV20731 24STCV20731

County: los-angeles
Division: Civil Law and Motion
Department: 731
Hearing date: 2026-09-24
Motion: DEFENDANTS' MOTION FOR SUMMARY ADJUDICATION
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Case Number: 24STCV20731 Hearing Date: September 24, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

RUBEN VERA,

Plaintiff,

vs.

UNIVERSITY OF SOUTHERN
CALIFORNIA; CONTEMPORARY SERVICES CORPORATION; APEX SECURITY GROUP, INC.;
LIVE NATION INC.; LIVE NATION WORLDWIDE, INC. and DOES 1 to 50,

Defendant.

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CASE NO: 24STCV20731

[TENTATIVE] ORDER RE: DEFENDANTS'
MOTION FOR SUMMARY ADJUDICATION

Dept. 731

September 24, 2026

8:30 a.m.

Matter No. 20

Moving Party: Defendants, Contemporary Services Corporation and Apex
Security Group, Inc.

Opposing Party: Plaintiff, Ruben Vera

Notice: OK

Background Facts

Pleadings

Plaintiff Ruben Vera sues

Defendants University of Southern California ("USC"), Contemporary Services Corporation ("CSC"), Apex Security Group, Inc. ("Apex"), Live Nation, Inc. ("Live Nation"), Live Nation Worldwide, Inc. ("LNW"), and Does 1 to 50 pursuant to an August 15, 2024, Complaint alleging claims of Negligence, Negligent Infliction of Emotional Distress, and Assault and Battery.

The claims arise from allegations

that, on August 20, 2023, while attending a live "Los Bukis" concert with members of his family at the USC Coliseum located at 3911 S Figueroa St, Los Angeles, CA 90037, Plaintiff was suddenly and without provocation approached and assaulted by security officers employed by Apex, a company which alongside CSC was providing security services for the Los Bukis concert, with Apex security then handcuffing Plaintiff, dragging him away from the concert goers, climbing on top of Plaintiff (thus preventing Plaintiff from breathing), cursing at Plaintiff ordering him to keep his head down, and eventually escorting Plaintiff to a detainment center, where Plaintiff was held until after the concert ended, having sustained traumatic injuries to his person, including but not limited to a fractured clavicle, neck strain, musculoskeletal chest pain, and wrist contusions.

Background Facts

Now before the Court is CSC and

Apex's June 25, 2026, joint motion for summary adjudication of the Complaint's second cause of action for Negligent Infliction of Emotional Distress against these Defendants and the Complaint's prayer for punitive damages against Apex.

Plaintiff filed an opposition on

September 4, 2026, against which CSC and Apex filed a reply on September 11, 2026.

Motion for Summary

Adjudication

a. Objections

to Evidence

i. Opposition

Objections to Motion Evidence

OVERRULED: All Objections

SUSTAINED: None

NOT RULED ON (Code Civ. Proc., §

437c, subd. (q)): None

ii. Reply

Objections to Opposition Evidence

OVERRULED: None

SUSTAINED: None

NOT RULED ON (Code Civ. Proc., §

437c, subd. (q)): All Objections

b. Legal

Standard

A motion for summary judgment shall

be granted if all the papers submitted show that there is no triable issue as

to any material fact for trial or that the moving party is entitled to a

judgment as a matter of law. (Code of Civ. Proc., § 437c, subd. (c).) A party

may also seek summary adjudication of select causes of action, affirmative

defenses, claims for damages, or issues of duty, which may be made by a

standalone motion or as an alternative to a motion for summary judgment and

proceeds in all procedural respects like a motion for summary judgment, but

which must completely dispose of the challenged cause of action, affirmative

defense, claim for damages, or issue of duty. (Code Civ. Proc., § 437c, subds.

(f)(1)-(2), (t).)

The moving party bears the initial

burden of production to make prima facie showing no triable material fact

issues. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850 (Aguilar).) This burden on summary judgment or adjudication “is more properly one of persuasion rather than proof, since he must persuade the court that there is no material fact for a reasonable trier of fact to find, and not to prove any such fact to the satisfaction of the court itself as though it were sitting as the trier of fact.” (Id. at p. 850, fn. 11.) If the moving party meets this burden, the burden shifts to the opposing party to make a rebuttal prima facie showing that a triable issue of material fact exists. (Id. at p. 849.)

Where a defendant seeks summary judgment or adjudication, the defendant must show that either “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action.” (Code Civ. Proc., § 437c, subd. (o)(2).) A defendant may satisfy this burden by showing that the claim “cannot be established” because of the lack of evidence on some essential element of the claim. (Union Bank v. Superior Court (1995) 31 Cal.App.4th 574, 590.) Once the defendant meets this burden, the burden shifts to the plaintiff to show that a “triable issue of one or more material facts exists as to that cause of action or defense thereto.” (Ibid.)

“[I]n ruling on motions for summary judgment courts are to “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” [Citations].” (Cheal v. El Camino Hospital (2014) 223 Cal.App.4th 736, 760.)

Discussion

i. Complaint,

Second Cause of Action, Negligent Infliction of Emotional Distress

As a matter of law—rather than on burden shifting based on evidence—and as raised for first time in reply—permissible here due to the clear applicability of the argument, in response to which the Court permits oral argument and may permit further briefing as necessary—the Court finds that the NIED claim fails on summary adjudication.

Under California law, negligent infliction of emotional distress is not an independent tort, but rather, is instead subsumed within the tort of negligence. (Burgess v. Superior Court

(1992) 2 Cal.4th 1064, 1072 (Burgess); Huggins v. Longs Drug Stores California, Inc. (1993) 6 Cal.4th 124, 129 (Huggins).) Consequently, a plaintiff seeking to recover for negligent infliction of emotional distress (“NIED”) must establish the traditional elements of negligence: duty, breach of duty, causation, and damages. (Burgess, *supra*, 2 Cal.4th at p. 1072; Huggins, *supra*, 6 Cal.4th at p. 129.)

California courts have addressed these duplicative claims in the context of summary disposition and post-trial challenges, concluding that separate claims for NIED cannot stand alongside general negligence claims because they are redundant and risk creating double recovery.

In *Los Angeles Cellular Tel. Co. v. Superior Court* (1998) 65 Cal.App.4th 1013, 1016, fn. 1 & 1018-1019 (“L.A. Cellular”), in the context of a writ of mandate from a denied motion for summary adjudication, the court of appeal treated its analysis of a negligence claim and of a separate negligent infliction of emotional distress claim as a single claim for negligence, specifically noting that “[f]or reasons we do not understand, [plaintiff’s] complaint includes a separate cause of action entitled ‘negligent infliction of emotional distress’ (a cause of action generally limited to bystanders and other third parties),” where “negligent infliction of emotional distress is not an independent tort but simply the tort of negligence, with the traditional elements of duty, breach and causation.” (Quoted content at fn. 1.)

In *Plotnik v. Meihaus* (2012) 208 Cal.App.4th 1590, 1608-1609 (Plotnik), in the context of appeals to jury verdicts resulting in judgment, the court of appeal reversed judgment in favor of plaintiff as to the negligent infliction of emotional distress claim, reasoning that, even though distinct awards were given for claims of breach of settlement agreement and NIED, “the duty underlying each cause of action [wa]s identical,” for which reason the court of appeal “s[aw] no basis for distinguishing between the emotional distress plaintiffs suffered because of [the defendant’s] breach of the settlement and his liability in tort for negligent infliction of emotional distress.”

In *Belen v. Ryan Seacrest Productions, LLC* (2021) 65 Cal.App.5th 1145, 1165, within the context of discussing prong 2 of the anti-SLAPP analysis on appeal, the court of appeal noted

the correct finding by a trial court that the NIED claim in that action was duplicative of a negligence claim otherwise alleged in that action, but modified the judgment in the action to strike the cause of action for negligent infliction of emotional distress because “the trial court neglected to strike the cause of action for negligent infliction of emotional distress,” where “no such independent tort exists.” (Emphasis added.)

Several federal courts have reached similar conclusions with regard to the relationship between negligence and NIED claims. (See, e.g., *Lopez v. Johnson and Johnson* (2023) 654 F.Supp.3d 997, 1016 [Federal district court granting motion to dismiss negligent infliction of emotional distress claim based on California law determining that there is no independent NIED claim beyond the tort of negligence]; *White v. Social Security Administration* (2015) 111 F.Supp.3d 1041, 1054 [same].)

Here, because the first cause of action for Negligence and the second cause of action for NIED are alleged equally against all Defendants, the NIED claims add nothing to the pleadings beyond the Negligence claim, is redundant, and under the above authorities, should either be struck or considered subsumed into the negligence claim.

Based on this reasoning, as a matter of law, summary adjudication is GRANTED as relates to the second cause of action.

ii. Complaint,
Prayer, Punitive Damages

CSC and Apex next seek summary adjudication of the Complaint's prayer for punitive damages as against Apex, which the moving papers correctly note that the Complaint expressly confines to Apex. (Complaint, ¶¶ 54, 57 & Prayer, ¶ 3.)

In support of this position, CSC and Apex argue that “Plaintiff cannot meet his burden to show by clear and convincing evidence that any corporate officer, director, or managing agent of Apex committed, or knowingly ratified any of the Apex security guards' alleged, malicious or oppressive conduct toward Plaintiff,” as required by Civil Code section 3294 and controlling case law. (Motion, pp. 6-7, citing Motion, Separate Statement, Undisputed Material Fact (“UMF”) Nos. 4-8.)

Established case law exists

relating to this argument. When the defendant is a corporation, “[a]n award of punitive damages ... must rest on the malice of the corporation’s employees” specifically, “the oppression, fraud, or malice perpetrated, authorized, or knowingly ratified by an officer, director, or managing agent of the corporation,” where a managing agent “include[s] only those corporate employees who exercise substantial independent authority and judgment in their corporate decisionmaking so that their decisions ultimately determine corporate policy.” (Wilson v. Southern California Edison Co. (2015) 234 Cal.App.4th 123, 164, citations omitted.)

For factual support, CSC and Apex

cite discovery responses served by Plaintiff to Apex’s Special Interrogatories, Set One, Nos. 70-72, in which Plaintiff respectively identifies the factual bases for punitive damages, witnesses supporting punitive damages, and documents supporting punitive damages. (See Motion, Separate Statement, UMF Nos. 4-8, citing Motion, Index of Exhibits, Ex. 4, Responses to Special Interrogatories, Set One, Nos. 70-72, as verified in Motion, Doumar Decl., 2:20-21 as Exhibit 4.)

The Court notes that it has

overruled objections to this evidence.

The Court also notes that where a

defendant moves for summary judgment or adjudication on the ground that the plaintiff does not possess, and/or cannot reasonably obtain, needed evidence, the defendant cannot simply make a bare argument to that effect but must instead support the motion with evidence. (Professional Collection Consultants v. Lauron (2017) 8 Cal.App.5th 958, 965, citing to Aguilar, supra, 25 Cal.4th at p. 855; Rio Linda Unified School Dist. v. Superior Court (1997) 52 Cal.App.4th 732, 735 [party seeking summary adjudication may “establish its prima-facie entitlement to judgment by demonstrating its opponent’s discovery responses are devoid of evidence to support an element of the opponent’s case”].)

Here, a review of Plaintiff’s

discovery responses confirms the proposition for which the evidence is advanced, i.e., nowhere in Plaintiff’s responses to special interrogatories specifically asking Plaintiff to identify his bases for punitive damages did Plaintiff

identify the conduct or omissions of any Apex corporate officer, director, or managing agent. (See Motion, Index of Exhibits, Ex. 4, Responses to Special Interrogatories, Set One, Nos. 70-72.)

Nevertheless, the Court determines that CSC and Apex fail to carry their burden on summary adjudication of the prayer for punitive damages against Apex.

In the context of a summary judgment or adjudication motion, if a party contends some particular issue of fact has no support in the record, it must set forth all the material evidence on the point and not merely the evidence favorable to it. (Rio Linda Unified School Dist. v. Superior Court (1997) 52 Cal.App.4th 732, 740, citing Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 881.) Moreover, the moving party must also produce evidence that the opponent cannot reasonably expect to produce evidence supporting the infirm element. (Addy v. Bliss & Glennon (1996) 44 Cal.App.4th 205, 214.)

Here, the moving papers only address whether Plaintiff's responses to Apex's Special Interrogatories, Set One, Nos. 70-72 contain any information relating to conduct or omissions by a corporate officer, director, or managing agent at Apex and fail to mention whether other discovery propounded on Plaintiff relates to punitive damages, what the responses thereto were, or why Plaintiff cannot be reasonably expected to obtain discovery showing corporate liability to Apex by way of the conduct or omissions of any corporate officer, director, or managing agent.

Summary adjudication of the prayer for punitive damages, expressly confined by the pleadings to Apex, is accordingly DENIED.

d. Conclusion

Contemporary Services Corporation and Apex Security Group, Inc.'s motion for summary adjudication is GRANTED in part and DENIED in part as follows:

(1) GRANTED as to the Complaint's second cause of action; and

(2) DENIED as to the Complaint's
prayer for punitive damages against Apex.

Contemporary Services Corporation
and Apex Security Group, Inc. are ordered to give notice.

Parties who intend to submit
on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative
as directed by the instructions provided on the court website at www.lacourt.org. If
the department does not receive an email indicating the parties are submitting
on the tentative and there are no appearances at the hearing, the motion may be
placed off calendar. If a party
submits on the tentative, the party's email must include the case number and
must identify the party submitting on the tentative. If the parties do not submit on the
tentative, they should arrange to appear remotely.

DATED: September 24, 2026 _____

MARK C. KIM

Judge of the
Superior Court